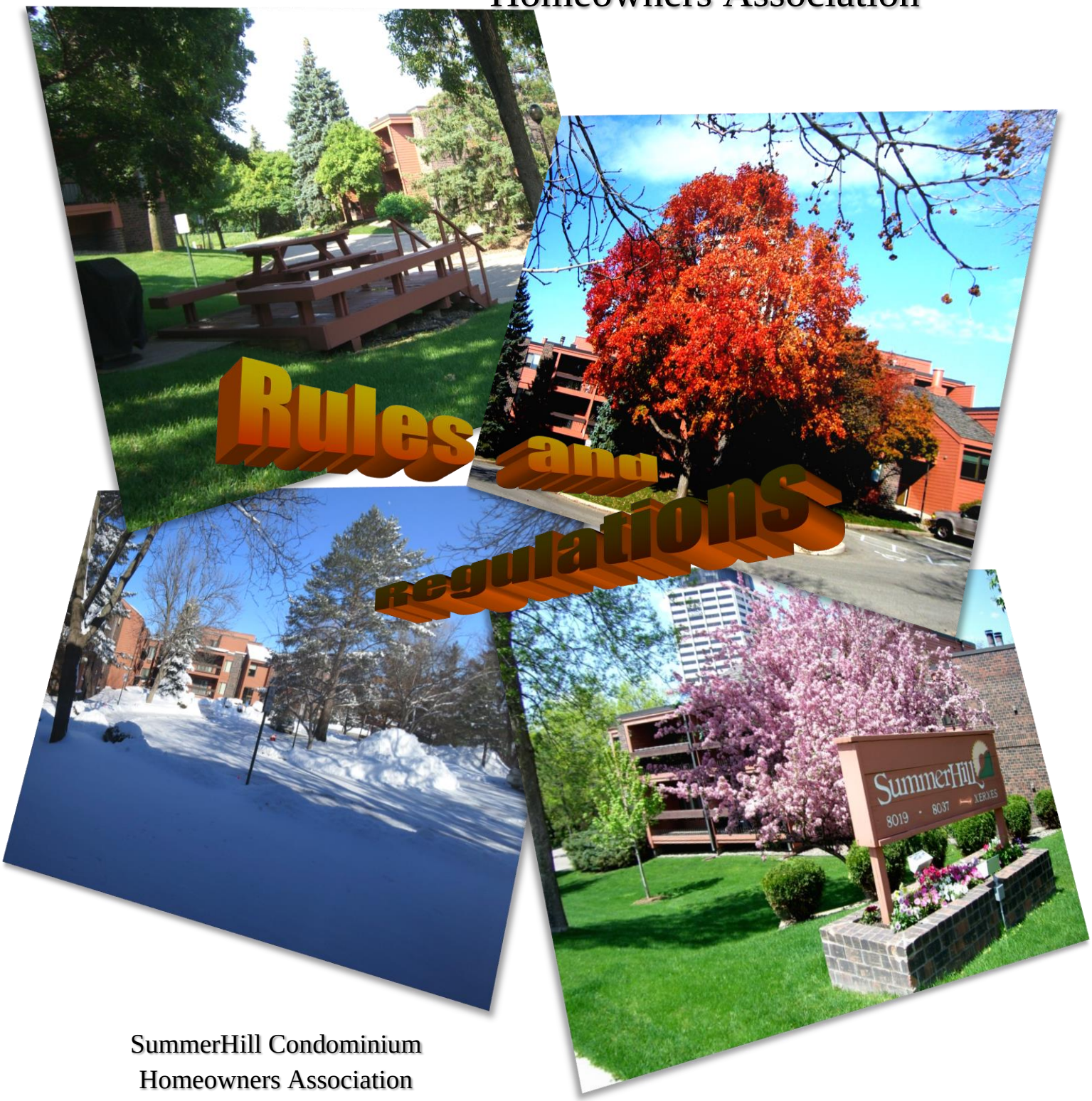
SummerHill Condominium Homeowners Association



SummerHill Condominium
Homeowners Association
Bloomington, Minnesota 55431

Revised 2021

SummerHill Condominium Homeowners Association

Rules & Regulations

Revised 2021

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THE RULES & REGULATIONS

Goal

The Rules and Regulations have been prepared and adopted with the priority being the *Unit Owner's* and/or *Unit Occupant's* safety, comfort, and convenience. These Rules and Regulations have been established for the benefit of all *Unit Homeowners* and/or *Unit Occupants*. Your cooperation is paramount if these policies are to be attained.

Enforcement

Enforcement of these Rules and Regulations will be accomplished by the Board of Directors, within the bounds and with the authority given to the Association, as set forth in the Minnesota Common Interest Ownership Act, and related Governing Documents. The Board membership will exercise discretion in establishing/setting reasonable fines commensurate with infractions.

Document Authority Date

This 2020 document-update of the Rules and Regulations hereby supersedes any and all previously-issued Rules and Regulations.

I. GENERAL

A. No business activity designated-for-profit, or otherwise, shall be permitted on the property.

B. Smoking, defined below, is prohibited in all common areas on the property, including garages and picnic areas. Occupants must prevent the Smoke, as defined below, from leaving their Units, including their balconies/decks, from entering and intruding into common areas and into other Units, and balconies/decks and the interior common element areas. It will be up to the Unit occupants to do this, by using good-quality air cleaners, weather-stripping their doors and windows, keeping windows closed, insulating around plumbing, and implementing all other procedures necessary. Throwing cigarette butts and other smoking materials onto grassy areas, rock beds, parking lots, and all other common areas inside and outside is prohibited.

For the purposes of this Rule, Smoking includes smoke and second-hand smoke and is defined as the end product from inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, or similar object, containing, made, or derived from, nicotine, tobacco, marijuana, or other plant, whether natural or synthetic, that is intended for inhalation. Smoking, Smoke and second-hand smoke also results from the action or practice of inhaling and exhaling the vapor produced by an electronic cigarette or similar device, commonly known as vaping. For the purposes of this Rule, "Smoke" shall mean the end-product of Smoking and Vaping, etc., as described herein and include the second-hand smoke/vapor when so used.

Complaint procedure:

1. Complainant must notify management in writing (email or hard copy) of a smoking violation. The complaint must include the Unit number and/or name of the individual(s) violating the smoking rules, date and time of the violation, as well as their own name and contact information to answer any questions. The name of the complainant may not remain confidential.
2. Upon receipt of a complaint, Management (and or Directors) will investigate the complaint and make a determination of whether a violation has occurred.

3. If there is a determination of an initial violation, then, for the first complaint about an individual or Unit, Management will give the Unit Owner a courtesy call or email to inform the Unit Owner that he/she has 14 days to correct the issue.
4. For the second complaint about an individual or Unit after the 14 days, Management will send a written warning about the violation stating they have fourteen (14) days to correct the issue or a fine will be imposed for each additional complaint, coupled with a notice of the right to request an opportunity to be heard.
5. If, after the second complaint, the issue has not been corrected, a fine of one hundred dollars ($100.00) will be assessed to the Owner's Unit and will continue thereafter for each additional complaint received.
6. The opportunity to be heard will be granted for the first fine, but not subsequent violations.

C. Subject to state and federal laws, no signs, flags, or other postings except those approved by the Board of Directors, are permitted on balconies or decks, in windows, or anywhere else the signs can be seen outside the Unit. Bulletin boards may be used to relay messages such as lost-and-found items, garage space wanted, etc.

D. Each *Unit Owner* or unit occupant shall comply with all applicable laws, ordinances and regulations.

E. Nothing shall be done either willfully or negligently, which may become an annoyance or nuisance to other *Unit Owners*, or other occupants. No *Unit Owner* or occupant shall make or permit any disturbing noises to be made on the Property by family or guests, as pursuant to **Bloomington City Ordinance**, **(***12.02 PUBLIC NUISANCE PROHIBITED/(1958 Code, § 160.02) (Ord. 17, passed 9-1-1953; Ord. 168, passed 1-8-1952; re-codified by Ord. 98-53, passed 11-16-1998; Ord. 2006-13, passed 4-17-2006; Ord. 2013-6, passed 3-18-2013)***.**

F. No more than two (2) persons may utilize/occupy as a residence or otherwise utilize/occupy any ONE BEDROOM Residential Unit. No more than four (4) persons may occupy any TWO BEDROOM Residential Unit. **(***See International Property Maintenance Code, Chapter 4 Section 404)*

II. OWNER-ASSOCIATION MEMBER

A. As part of the formal sale/closing procedures, the designated Management Company is to be informed and supplied with all pertinent old/new owner information: names, addresses, telephone numbers, etc.

Note: A lock-rack for real estate lock boxes shall be available and **ONLY** permitted in the **Trash Room**, located at the **first floor**, **Main Entrance** to **Building 8013**.

B. Only unit *Homeowners* are permitted to purchase additional security (exterior building entrance door) keys. Two security keys are provided at such time that a building security-entrance door/garage service-door is rekeyed. There shall be NO REFUNDS for security keys returned. Building security-entrance/garage service-door keys are ONLY available from the Management Company.

C. The *Unit Owner*-SELLER must provide the *Unit Owner*-BUYER with a copy of the most current Rules & Regulations.

D. A *MOVE-IN FEE* of one hundred dollars ($100.00) shall be assessed to the account of the *Unit Owner* each time a move-in occurs. This is a one-time non-refundable charge and applies to any re-sale of the unit. The new *Unit Owner* will be assessed this fee at the time of closing.

Note: Non-compliance of this regulation will result in an additional fine of one hundred dollars ($100.00) assessed to the *Existing Unit Owner's* account.

E. *Unit-Owner* Maintenance Responsibilities: The *Unit Owner(s)* is (are) responsible for maintaining the mechanical, electrical, plumbing, and structural interior-integrity of their Unit.

1. The Homeowners Association shall assess any Common Expense, such as unique utilities costs or expenses arising from a repair or reconstruction project benefitting fewer than all of the Units among the Units benefitted, and such Common Expense shall be allocated among such benefitted Units in the ratio that their respective Common Expenses liabilities bear to each other, as enumerated in The Minnesota Common Interest Ownership Act, MCIOA, Section 515B.3-115, and as enumerated in MCIOA, Section 515B.3-107, "Damage to the common elements or any unit as a result of the acts or omissions of a *Unit Owner* or the Association is the responsibility of the person causing the damage, or whose agents or invitees caused the damage."

   Note: Administrative costs charged to the Homeowners Association by the Management Company shall be assessed to the *Unit Owner*.

2. The *Homeowner(s)* is/are responsible to maintain, repair, and/or replace items in their Units. This duty to maintain includes various fixtures and appliances located therein, such as toilets, dishwashers, washing machines, dryers, water heaters/softeners, refrigerators, ovens/stoves and, more importantly, the ***plumbing components for these fixtures and appliances, including water hoses (to and from washing machines, dishwashers, refrigerators, etc.), water line shut-off valves and certain water supply lines (such as from the toilet to the Association's water line, or to the refrigerator)***.

   a. The *Homeowner* should periodically have performed a "Preventive Unit Maintenance" of all water line components by a licensed, bonded plumbing firm, and have a completed "check-list" included in their home papers.
   b. When damage to the Association's Common Elements and/or another Unit is the result of a water leak originating in an Owner's Unit, the Association will assess back any deductible or costs incurred for repairs, etc. to the Owner from whose Unit the water originated.
   c. If the Association is charged any management fees addressing the damage, the Association will assess such management fees to the Unit from where the water originated. Any deductible or fees assessed to a Unit will be payable within thirty (30) days of the assessment being levied and constitute part of the Association's lien against the Unit for unpaid assessments.
   d. **IT IS INCUMBENT UPON THE HOMEOWNER TO SECURE ADEQUATE, SUPPLEMENTAL, "HO6" INSURANCE COVERAGE**.

III. UNIT-RENTAL OCCUPANTS

A. Unit Rental Occupants are obligated to abide by all Association Rules & Regulations. The *Unit Owner* must provide the Lessee/Renter with a copy of the Rules & Regulations.

B. Units must be rented and/or leased in their entirety, and cannot be subleased.

C. Any violation by a renter/lessee/occupant or their guests of the Rules & Regulations or Governing Documents of the Association will be brought to the attention of the Unit Owner(s) by the Board of Directors and/or the Management Company. Upon notification, the Unit Owner(s) will cause the violation to be corrected within seven (7) days. In the event the violation reoccurs or is not corrected within seven (7) days, the Board will enforce the Rules and Regulations according to enforcement procedures outlined in Article XIV.

D. Narcotic items are prohibited on all areas of the property, as per **Bloomington City Code**, *12.68 UNLAWFUL USE OF CONTROLLED SUBSTANCES. (1958 Code, § 192.02(Ord. 75-14, passed 3-24-1975, renumbered to § 192.01; re-codified by Ord. 98-53, passed 11-16-1998; added by Ord. 99-14, passed 7-6-1999).* The police will be immediately apprised of any incidents.

IV. LATE FEE COLLECTION POLICY

A. Annual Assessments for Common Expenses are due in monthly installments, in advance, on the first (1st) day of each month of the period, for the year for which the assessments are made. Other "Assessments" are due upon direction of the Board.

B. The period between the first (1st) day of the month and the fifteenth (15th) day of the month will be considered the GRACE PERIOD and that fees not received by the Management Company Agent/Designee will be considered delinquent. A notice will be sent to the Unit Owner which will inform the *Unit Owner* of the assessment of a *late fee* on all Unit-Owner's 16-day past-due accounts.

1. Any *Unit Owner* with an outstanding balance as of the sixteenth (16th) day of a month, will be assessed and obligated to pay an Administrative Late Fee of fifteen dollars ($15.00).
2. Interest at the current per annum rate allowable by law from the date of the assessment through the period of default will be accrued on all past balances on the account.
3. Administrative Late Fees will continue to be charged each month to any account with an outstanding balance as of the sixteenth (16th) day of a month.
4. Payments received are applied in the following priority: Late Fees, Interest, Collection Expenses, Fines, Annual Assessments, Other Assessments.

C. If the account continues to be in default after thirty (30) days, the Association will send a letter to inform the *Unit Owner* that the account will be submitted for collection of payment, if such payment is not received within five (5) days following mailing of the correspondence. The Association, acting through its Board of Directors, is to automatically send the account to the Attorney for Collection if payment is not received with five (5) days. The Association will request that the Attorney commence full legal action to include action to foreclose the lien. Annual Assessments will be accelerated and immediately due-and-payable, along with all Administrative Late Fees, Interest and Expenses, incurred for the collection thereof. All Expenses for Collection are to be assessed to the Owner's Unit, in the same manner as Association Fees.

V. RESIDENTIAL UNIT/GARAGE LEASING

A. The *Unit Owner* shall assess and forward to the Management Company the following, at the time of Unit-rental/lease commencement:
   1. The one hundred dollars ($100.00) move-in fee.
   2. Copy of the rental/lease agreement in executed form.
   3. Name renter and all unit occupants.
   4. Term of the rental agreement—to be not less than one year, unless Board-approved alternative circumstances permit.
   5. The *Unit Owner* must supply a copy of the rental agreement information requested, in items 2, 3, and 4 above, each time a unit is leased/rented to a new renter/occupant or whenever the rental/lease period is extended or renewed with an existing renter/lessee.
   6. Non-compliance of this regulation will result in an additional fine of one hundred dollars ($100.00) assessed to the *Unit Owner's* account.
   7. It is the *Unit Owner's* responsibility to handle all maintenance, repair, etc., within and upon the unit, which is not the responsibility of the Association. The *Unit Owner(s)* shall assure the renter/lessee a full understanding that all matters pertaining to unit maintenance, repair, etc., are to be handled with the *Unit Owner(s)* and NOT the Association and/or the Association Management Company. Such Unit Owner(s) responsibilities are enumerated in Article II-E: Unit Owner Maintenance Responsibilities.
   8. Any violation by a renter/lessee/occupant or their guests of the Rules & Regulations or Governing Documents of the Association will be brought to the attention of the Unit Owner(s) by the Board of Directors and/or the Management Company. Upon notification, the *Unit Owner(s)* will cause the violation to be corrected within seven (7) days. In the event the violation reoccurs or is not corrected within seven (7) days, the Board will enforce the Rules and Regulations according to enforcement procedures outlined in Article XIV.

B. Garages shall be used only for the parking/storage of automobiles and bicycles. All other items shall be placed in dedicated/assigned storage areas.

C. Storage of any combustible/flammable items is strictly prohibited, as per **Bloomington City Ordinance/*Code 6.20*** *STATE FIRE CODE ADOPTED. 1958 Code, § 37.01/(Ord. 141, passed 5-20-1958; Ord. 58, passed 12-18-1961; Ord. 66-34, passed 6-6-1966; Ord. 76-39, passed 7-26-1976; Ord. 76-61, passed 12-6-1976; Ord. 83-20, passed 6-6-1983; Ord. 91-21, passed 4-1-1991; Ord. 94-22, passed 5-2-1994; Ord. 98-56, passed 11-16-1998; Ord. 2005-32, passed 8-15-2005; Ord. 2009-2, passed 2-2-2009)*.

D. Spilling/flushing of any "Hazardous Materials" into floor drains is strictly prohibited, per **Bloomington City Ordinance/Code** (*6.20 STATE FIRE CODE ADOPTED./ 1958 Code, § 37.01Ord. 141, passed 5-20-1958; Ord. 58, passed 12-18-1961; Ord. 66-34, passed 6-6-1966; Ord. 76-39, passed 7-26-1976; Ord. 76-61, passed 12-6-1976; Ord. 83-20, passed 6-6-1983; Ord. 91-21, passed 4-1-1991; Ord. 94-22, passed 5-2-1994; Ord. 98-56, passed 11-16-1998; Ord. 2005-32, passed 8-15-2005; Ord. 2009-2, passed 2-2-2009).*

VI. PETS/ANIMALS

A. No pet(s)/animals(s) of any kind, except domestic cats, small fish, or birds, may be brought into or kept in or about the premises. Dogs, except service animals, are not allowed at any time.

B. Any disturbance, such as excessive noise or noxious odor caused by any of these pets will be cause for an action by the Board to remove the offending pet from the Condominium Property.

C. A Pet Deposit of one hundred dollars, ($100.00) must be made with the Pet Registration for any animal. This deposit is not refundable.

VII. CHILDREN

Children are welcome in our community.

Particular note is to be made of a Parent's or Guardian's responsibility for children's welfare and safety in a relationship to the adjacent public streets which surround the property.

VIII. MOTOR VEHICLES, PARKING AND GARAGES

A. All vehicles on the Property shall be licensed with current year tabs displayed.

B. No motorized vehicles of any type shall be allowed on the property except on designated driveways, parking spaces and garages.

C. No vehicle(s) belonging to a *Unit Owner/Occupant/Resident*, or their guests, shall be parked in such a manner as to impede or prevent ready access to a Unit's garage or the parking spaces therein.

D. Out of courtesy, Unit Owners/Occupants/Residents are asked to park near the doors in front of buildings for only short periods of time to assure available parking spaces for visitors and those with limited mobility. Please use spaces near the garage entrances for longer-term parking.

E. No *Unit Owner/Occupant/Resident* shall cause or permit the blowing of any horn from any vehicle except when necessary for pedestrian safety, or the safe operation of the vehicle.

F. No vehicle shall be parked continuously in the outdoor parking areas for more than seven (7) days without prior Management approval. Violators will be subject to towing.

G. No vehicle(s) shall be left standing anywhere on the Property in a non-operative condition. Vehicles left longer than forty-eight (48) hours will be tagged with a notice stating that the vehicle(s) must be removed within twenty-four (24) hours, or the vehicle(s) will be towed at the owner's expense. It will be the obligation of the Association member entitled to the Unit being visited to inform all guests of this rule.

H. Recreational vehicles, trucks, and other vehicles, (other than automobiles) rated at greater than three-quarter (3/4) ton rating will not be allowed to be parked on the Property except for short periods of time to permit loading or unloading.

I. Boats, three-wheelers, snowmobiles, or any other Recreational Equipment of any kind are not allowed to be parked/stored on the Property at any time.

J. All cars must be moved from the Property drives and outside parking lots no later than twelve-o'clock (12:00; noon) the day following snowfalls exceeding two (2) inches, to allow for snow removal/plowing.

K. Each *Unit Owner* has total control and use of their assigned garage unit except for the following limitations, which are imposed for the safety and welfare of all Unit Owners:

1. There shall be no storage of any of the nine categories of "Hazardous Materials" (i.e.: flammable—solids, gases, liquid—explosive, corrosive, acid, abrasive, radioactive, or other) of any kind allowed, at any time.
2. Care is to be taken to assure the overhead garage doors, outside service doors, hallway access doors are securely closed behind you.
3. Garage units are to be used only for parking the Unit Owner/Occupant/Resident('s) vehicle.
4. Minimal maintenance and repair of vehicles is permitted for light and routine, NON-MECHANICAL maintenance.
5. Petroleum-spills (example: crankcase, transmission, differential, etc.) must be corrected by the vehicle owner in a timely manner, not to exceed twenty-four (24) hours.
6. Flushing of "Hazardous Materials", (see item 1 above), down the floor drains is strictly forbidden, per **Bloomington City Ordinance***/Code 6.25.03 PENALTY violation of any provision in this Article II shall be a misdemeanor Ord. 97-6, passed 3-17-1997*.
7. Storage of bicycles is allowed in the garage stall. No other storage is allowed unless approved by the Board.

L. A car wash facility is located in garage 8019, for buildings 8007, 8013, 8019 and 8025. A garage door opener is available in a box, adjacent to the vehicle-entry door in building 8007 for *Unit Owners* in buildings 8007 and 8013. *Unit Owners* in Building 8013 can access the opener in Building 8007's garage using their building security-entry area key. A similar car wash facility is located in garage 8037 for *Unit Owners* in buildings 8031 and 8037. *Unit Owners* in building 8031 can access the car wash facility using their security-entry area key.

1. Only **Homeowner/Occupants** shall be permitted to use the car washes.
2. No family-members or guest are permitted to use the car washes.
3. Chemical abrasives/cleaners must never be used in ANY AREA of the garages, car wash, or parking stalls. Flushing of such chemicals, (such as engine coolant) through the floor drainage system is a violation of the Bloomington City Ordinance/Codes—such violations are prohibited and will be reported if suspected/identified.

IX. BALCONIES/PATIOS

A. *Unit Owner(s)/Occupants/Residents* have exclusive rights to use the balconies/patios attached to their units, including the placement of appropriate portable floor furniture inside, on the floor, walls and or railings.

B. *Unit Owner(s)/Occupants/Residents* are obligated to clean their balcony and/or patio floors, walls, and doors. Cleaning of balconies/patios will be accomplished so as not to interfere with balconies/patios below. Nothing, including cigarette butts and other smoking materials, shall be thrown, swept or dropped from a balcony except for snow removal.

C. Holiday decorations may be placed on balconies/patios thirty (30) days prior to the holiday. All decorations are to be removed within thirty (30) days following the holiday.

D. Planters on balconies/patios, which are planted with living plants and/or shrubs are to be maintained by the *Unit Owner/Occupant/Resident* and shall be removed upon loss of the plant.

E. Any additions, changes or alterations to the balcony/patio or surrounding areas are prohibited without specific (written) approval by the Board of Directors.

F. Storage of firewood in the maximum amount of forty-three (43) cubic feet, or approximately one-third (1/3) cord, is allowed on the balcony/patio.

G. Outdoor-style carpeting is permitted in green or brown tones. Carpeting must be removable. All deterioration of the wood components of building balcony areas deemed to have been caused by installation of such carpeting shall be the responsibility of the *Unit Owner/Occupant/Resident*.

H. Shades, awnings, screening, or other such appurtenances are prohibited from use on balconies/patios. Only wood and/or bamboo shades, (natural color only) may be installed on balconies/patios, subsequent to written approval from the Board of Directors. These shades must be maintained in operating and clean condition. Unit Owners who permit such shades to deteriorate or are of a disheveled appearance will be informed, in writing, by the Board of Directors to remove such shades. Unit Owners/Occupants/Residents not complying with the written instructions will be subject to a fine of one-hundred dollars ($100.00) per month until such violation is corrected.

I. The following are prohibited activities as they relate to the use of balconies/patios:

1. Installing or use of antennae of any form
2. Posting of signs or advertisements
3. Shaking or hanging of garments, rugs, etc. from the balcony
4. Storage of tires, boxes, bicycles, or any item not considered seasonal furniture or other accessory normally used for the purpose of enjoying a deck/balcony/patio
5. Hanging wind chimes, bells, or any item which creates a noise
6. The feeding of birds, squirrels, or other animals

J. There shall be no climbing via balcony exteriors for the purpose of gaining access to any balcony/patio.

X. Common Elements

A. Association Storage Areas: The Common Area Meter/Storage Rooms are for the exclusive use of the Association. No *Unit Owner/Occupant/Resident* storage is allowed.

B. Refuse Disposal: Refuse shall be placed in properly-tied, non-leaking garbage bag(s) and placed in the dumpster area (informational sheets are posted in each area).

1. A "Trash" chute is located in each building for small, securely tied, garbage/trash packages only. Please carry larger "Trash" items and "Recycle" items directly to your building "Dumpster" or "Recycle" areas. Do not place plastic bags, including those bundling recycle items, in the "Recycle" bins.
2. The dumpster area for Buildings 8007/8013 is accessed within the garages of those buildings. Please, separate and place items into designated "Trash" bin or into "Recycle" receptacles.
3. In Buildings 8019/8025 and Buildings 8031/8037—the "Trash" dumpster room is located and accessed via the exterior, double-doors, separating entrances to the respective building-garage areas. The room in accessed via your Building Security key. The "Recycle" receptacles are outside, adjacent to respective building garage vehicle-entrance areas.

C. <u>Grounds and Landscaping</u>:

1. The Common Grounds are to be kept free and clear of all rubbish, debris and other unsightly materials.
2. Damage to property or others caused by moving or carrying of articles(s) will be the responsibility of the person in charge of such article(s) and be paid by the same.
3. The Irrigation System may only be altered or adjusted by an Association Board of Directors-designated technician.

D. <u>Hallways/Entry Areas/Stairwells</u>:

1. Hallways/entry Areas/Stairwells are Common Elements and will be maintained by the Association. Any additions, alterations, or decorations must be approved by the Association's Board of Directors.
2. All Hallways/Entry Areas/Stairwells are to be kept free and clear at all times of any personal property, including floor mats, rugs, shoes and boots, unsubscribed publications, etc.
3. The Security Door(s) are not to be disengaged or held open for any purpose without a monitor. *Unit Owners/Occupants/Residents* are not to allow entry to an unknown person(s) without proper identification.
4. Any need for repair or maintenance to these areas is to be reported to the Association-designated management company.
5. Smoking of any kind/substance is prohibited in the Common Areas.
6. There shall be no placement of unsubscribed publications at entrances to *Unit Owner(s)/Occupant(s)/Resident(s)* homes.
7. *Unit Owner(s)/Occupant(s)/Resident(s)* shall not enter upon the roof of any building without the express authorization of the Board of Directors.

<u>XI. Architectural Regulations</u>

Any exterior and/or interior Common Area changes are to be submitted to the Board of Directors for consideration and approval.

<u>XII. Compliance with the Rules and Regulations</u>

Each *Unit Owner/Occupant/Resident* is responsible for full compliance to the Rules and Regulations by all family members, guests, visitors, lessee, and other persons during the time they are on, or using the property. By acceptance of title to a Unit, or/by occupancy of a Unit, each *Unit Owner/Occupant/Resident* agrees to hold the Association harmless and indemnify the Association from and against any liabilities, loss, or damages incurred by the Association as a result of any violations by the foregoing persons.

<u>XIII. Approval and Disapproval</u>

Approval of a request, as required by these Rules and Regulations, is given upon the completion of the following steps. In the event these steps are not completed, the request is considered denied:

1. A written request is received by the Board of Directors,

2. The Board's approval or disapproval is noted in the minutes of a Board of Directors' meeting,
3. Written notification of approval or disapproval received by the requesting member(s) from the Board of Directors.

XIV. Complaint and Enforcement Procedures

A. **Complaint Procedure**. Since voluntary compliance with the Association rules is not always obtained, it has occasionally been necessary for the Board to deal with these situations. The policy outlined below is an attempt to formalize the handling of various complaints addressed to the Association:

> Written, signed complaints regarding violations of the Association's Rules will be accepted by the Board of Directors. It is required the complainant first attempt to obtain voluntary compliance without official intervention.

B. **Complaints regarding the Association-Adopted Rules and Policies** should be forwarded or submitted in person, or in writing, at a meeting of the Board of Directors. The Association is not obligated to address anonymous complaints.

C. Complaints regarding rules' violations by Unit Owners/Occupants/Residents must be submitted in writing to the Board of Directors. The complainant should have attempted to discuss his/her complaint with the offending party and must indicate what response was received. Anonymous complaints will not be accepted. Complaints cannot be kept confidential.

D. Action on Complaints—The Board of Directors will review the complaint and its recommendation at its next regularly scheduled Board of Directors meeting, or as determined by the Hearing Procedures section defined below.

E. Enforcement Procedures

1. **Authority to Establish and Assess Fines**

   a. Any *Unit Owner/Occupant/Resident* who violates these, or any future regulations or restrictions, will be cited by the Board of Directors. Non-compliance of the citation will result in a one hundred-dollar ($100.00) fine for each time the violation occurs and is not rectified.
   b. The *Unit Owner/Occupant/Resident* shall assume full responsibility for payment of any assessed fines when the fine is a result of action by the Unit Owner(s)/ Occupant(s)/Resident(s).

2. **Hearing Procedures**

   a. Upon receipt of a written complaint by another *Unit Owner/Occupant/Resident*, detailing the complaint and the date and place of its occurrence, and upon confirmation of the complaint by the Board of Directors, the *Unit Owner* will be sent a communication detailing the violation, the intended fine the Association intends to assess and notify the Owner of the Owner's right to request an opportunity to be heard ("hearing") prior to the assessment of the fine, by making such request, in writing, within ten (10) days of the letter. If requested, the hearing will be at the next meeting of the Board of Directors.

b. Only a Unit Owner may request the hearing, and, if requested, the *Unit Owner(s)* MUST attend the hearing; the Board is not required to hear from third parties, attorneys, tenants, etc.
c. Following the hearing, the Board will determine action appropriate and reasonable. The Board's decision is final and binding.
d. In the event the Unit Owner(s) does/do not respond, or attend a requested hearing, the Board will enforce the Rules and Regulations based on the information available.

XV. Board of Directors Authority

The Declaration empowers the Board of Directors as follows:

1. Authority to Regulate**:** The Board of Directors has full authority to review these Rules and Regulations and change, alter, grant waivers or delete any portion, or section, as it sees fit to further the health, welfare, and safety of the *Unit Owners(s)*, *Occupant(s)*, or *Resident(s)* of SummerHill Condominiums.
2. Authority to Enforce: In addition, any Unit Owner(s)/Occupant(s)/Resident(s) who violates the Board of Directors directives and enforcement decisions shall be subject to all legal remedies available to the Association, its Board of Directors, and all other residents' as provided in the Governing Documents and/or by law.
3. Authority to Require Mediation and/or Arbitration: The Board maintains the right to require the parties in a dispute to proceed with mediation or arbitration and to equally bear the expense of such mediation or arbitration.

XVI. Notice to Association Members

A. The Board of Directors will provide reasonable notice of any changes in these Rules and Regulations to the Members of the Association.

Attachment: PET REGISTRATION FORM

SummerHill Condominium Homeowners Association

Rules and Regulations

Revised Edition,
April, 2020

Authorized, Board-Approved
Revised Edition copy work by Michael Buck

PET REGISTRATON FORM

TO: SummerHill Board of Directors

FROM: _____

RE: Pet Registration

Name(s):_____, _____

Address: _____ Unit Number: _____

Pet Registration

I/we hereby are registering the following described pet which will be house in our unit at SummerHill Condominium:

Pet: Type_____

Color/Weight_____, Age_____

I/we are in receipt of the Rules & Regulations and hereby acknowledge the restrictions on us and the handling of our pet at SummerHill Condominium.

I/we hereby agree to abide by the Rules & Regulations and any directive from the Board of Directors, concerning out pet.

A Pet Deposit of one-hundred dollars, ($100.00), must accompany this Registration Form.

Executed on this date, _____/_____/_____

Owner/Occupant (signature) _____

Comments: Received by: _____, Date_____/_____/_____

Cc: SummerHill Board of Directors
Homeowner
Managing Agent

XVII. Interfering with and/or Harassment of the Members of the Board of Directors

Volunteers serving on the Board of Directors wear separate hats. They are individuals with the same rights and obligations of other Members in the community. Only when meeting with other Directors, and having established a quorum, does the Board of Directors act to operate the Association. Alone, no Director can bind the Association nor promise to do, not do, address, etc., other member's issues.

Unfortunately, Owners and occupants in the community have a hard time respecting a Director's individual Owner/member status; somehow these Owners and occupants believe that a member's agreement to serve as a volunteer Director, this is an invitation for the Owners and occupants to treat the Director as "fair game" to be approached at any time, in person, by telephone, at all hours, alone or with company, etc., once, twice, and repeatedly. THIS BEHAVIOR – UNWANTED CONTACTS OUTSIDE OF BOARD MEETINGS CONSTITUTES HARASSMENT – engaging in conduct which the actor knows or has reason to know would cause the victim under the circumstances to feel frightened, threatened, oppressed, persecuted, or intimidated, and causes this reaction on the part of the victim regardless of the relationship between the actor and the victim.

Minn. Stat. Section 609.749, Subd. 2, **Harassment crimes,** indicates: A person who harasses another by committing any of the following acts is guilty of a gross misdemeanor:

(1) directly or indirectly, or through third parties, manifests a purpose or intent to injure the person, property, or rights of another by the commission of an unlawful act;

(2) follows, monitors, or pursues another, whether in person or through any available technological or other means;

(3) returns to the property of another if the actor is without claim of right to the property or consent of one with authority to consent;

(4) repeatedly makes telephone calls, sends text messages, or induces a victim to make telephone calls to the actor, whether or not conversation ensues;

(5) makes or causes the telephone of another repeatedly or continuously to ring;

(6) repeatedly mails or delivers or causes the delivery by any means, including electronically, of letters, telegrams, messages, packages, through assistive devices for people with vision impairments or hearing loss, or any communication made through any available technologies or other objects;

(7) knowingly makes false allegations against a peace officer concerning the officer's performance of official duties with intent to influence or tamper with the officer's performance of official duties; or

(8) uses another's personal information, without consent, to invite, encourage, or solicit a third party to engage in a sexual act with the person.

Most members of the community have been extremely understanding of the need to respect Directors' privacy when outside of the Board meetings. The Board thanks you for these efforts.

Unfortunately, some members feel volunteering to serve on the Board also means the Director should be available at all times to listen to the member's complaints, concerns, criticism, etc. These Rules are designed to clarify the Director's role and make operation of the Association easier. Due to this continued problem by some of the Owners and/or their occupants, and to clarify the Rules of expected civility, the Board of Directors has adopted the following Rules:

1. Owners wanting a particular matter to be addressed by the Board of Directors should bring the matter to the attention of the Management Company, in writing.

2. Owners may not seek to discuss the issue with individual Directors anytime outside of a meeting, in person, by telephone, email, etc. This is considered harassment.

3. Owners' occupants, guests, etc., shall have NO contact with Directors.

4. Owners may not try to meet with Directors at the Director's home or place of work by "stopping by", approaching them in hallways, elevators, parking areas, etc. This is considered harassment.

5. Owners may not try to discuss Association matters meet with spouses, partners, or other adults or children living with the Director. This is considered harassment.

6. Owners must not call Directors' at home or work to discuss matters outside of a Board of Directors' meeting; if a Director wishes to discuss something previously raised by an Owner (through management), the Director should do so in a manner allowing the Board to have knowledge of the discussion. This is considered harassment.

7. Owners may not leave telephone or voicemail messages on a Director's home answering machine or work answering machine and/or through home or work voicemail. Nor may Owners leave text messages for Directors. All such behavior is considered harassment.

8. Owners may not leave emails on a Director's home email or a Director's work email. This is considered harassment.

9. Owners may not leave notes on Directors' individual property, e.g., tape messages/notes, other written communications to the Owner's doors, vehicles, lockers or other property belonging to the Director or the Directors' family; nor may such communications be slid under a Unit door. All such actions are considered harassment.

Interference with contract – other than Management Company.

Your Association is tasked with the obligation to manage your Association. To do this, it seeks to enter into contractual relationships with third parties and then contracts with said parties to provide various services, etc. The following Rules apply to owners attempting to deal directly with said persons, as doing so can negatively affect the bids from said third parties' willingness to work for your Association and cost the Association thousands extra to get the necessary work/services performed:

1. To facilitate the performance of the Association's responsibilities herein, Owners and Occupants shall refrain from interfering with any employee, agent or independent contractor with whom the Association either has contracted or from whom the Association solicited bids for maintenance or other work which is the Association's responsibility to perform, as described in its Declaration, whether the work is to be performed on the Common Elements, Limited Common Elements or the some part of an Owner's Unit. This includes the Association's insurer.

2. Interference shall include, but not be limited to contacting such employee, agent or independent contractor with whom the Association either has contracted or from whom the Association solicited bids for maintenance or other work which is the Association's responsibility to perform by telephone, e-mail, facsimile, and/or in person, whether before, during or after such persons are performing the work they have been asked to perform by the Association or in the case of the Association's insurer, any time during the policy period, or for which the Association has solicited them to give bids to the Association. Interference shall also include interference with any type of messaging platforms, work orders, web portals, texting, email or facsimile use.

3. If an Owner or Occupant wishes to have contact with such employee, agent or independent contractor with whom the Association either has contracted or from whom the Association solicited bids for maintenance or other work which is the Association's responsibility to perform, the Owner or Occupant may make a request in writing to the Board of Directors, which will consider the request, but is not obligated to provide such permission. Unless and until such Owner is granted permission to have contact with such persons, the Owner and/or Occupant shall refrain from contacting the employee, agent or independent contractor hired by the Association or from whom the Association has solicited a bid to perform such work.

4. **Violations.** In addition to the remedies available to the Association set forth in these Rules and Regulations, in the event an Owner or Occupant is interfering with the employees, agents or independent contractors with whom the Association either has contracted or from whom the Association solicited bids for maintenance or other work which is the Association's responsibility to perform, as described in the Declaration, whether the work is to be performed on the Common Elements, Limited Common Elements or the Owner's Unit, the Association shall notify the Owner of the intent to levy a fine in the minimum amount of $100 (subject to the initial right to request an opportunity to be heard before the same is levied) and shall have the right to an immediate injunction against said Owner and/or Occupant, with the costs and any attorneys incurred in such action being assessed to the Owner's Unit.

Interference with contract – Management Company.

The Association's management company also is hired by the Association to provide services to the Association. The manager usually is the point person in lieu of various Board members being approached by members. Remember, individual Board members do not have authority to decide what happens. The Board meets, and, assuming a quorum is present, governs by majority.

This is why the Board asks that concerns, issues, requests be made to the manager. Unless a matter is an emergency – defined as imminent physical damage to the common elements and/or your Unit, the manager brings these concerns, issues and requests to the Board's attention at the next regularly scheduled meeting. This prevents an immediate reply, response, answer, etc.

Unfortunately, contacting management also can constitute interference with contract when the member makes repeated, multiple, and redundant requests, reports, etc., demanding immediate responses/replies despite the matter not being an emergency and despite knowledge a decision being the Board's to make. Interference may also include interference with any type of management's messaging platforms, work orders, web portals, texting, email or facsimile use. For the foregoing reasons, the Association has adopted the following Rules we hope can avoid taking up the Manager's time, our time, and avoid having the Association lose management contracts and acquire the reputation of being a difficult Association to manage due to the members' behavior.

1. Emergency: For the purposes of contacting management, EMERGENCY is defined as any condition that endangers life, limb or property. It does not include concerns about performance of a contractor, management or directors. It does not include dissatisfaction with operation of the Association.

2. Management is allowed to charge the Association $100 per hour for having to deal with a member repeatedly contacting management about non-emergency issues. As such costs are paid from the Association's common expenses and benefit less than all owners, the Association shall assess such additional costs to the homeowner per MCIOA.

3. If management feels the language used during telephone calls, left in voicemails, sent in emails, written correspondence and/or stated in person is derogatory, disrespectful, constitutes harassment, and/or is in any manner threatening to the manager, especially any statements threatening personal safety, manager will be allowed to notify the member that all further communication only should be made in a written format.

4. If the resident (Owner or Owner's occupants) places more than two (2) telephone calls or emails or combination thereof to management about a non-emergency matter, costs will be assessed, as described above. In addition, the Owner will be notified no additional telephone calls may be placed to management for a thirty (30) day period – all additional communications having to be in writing.

5. After notifying member of the decision that member's communication must only be made in a written format, manager will discuss with the Board of Directors whether involvement of the police and/or courts is needed to enjoin such communications if the same are considered to be within the definition of civil or criminal harassment, necessitating a harassment restraining order against the Owner or Owner's occupant(s).

6. Additionally, the manager will not be required to respond to nor reply to any communication received from the member or from other parties at the members' behest, in any other manner (non-written communication) after sending such notice to member, absent the manager, in manager's sole discretion, considering the matter an emergency, described above.

7. Harassment of a manager, as described below in Minn. Stat. Section 609.749, will not be tolerated.

8. Once member asks member's legal counsel to be copied on communications, manager may limit further communication just to the member's attorney and/or refer the matter to the Association's attorney. Should the matter involve enforcement of the Association's governing documents or rules or collection of assessments, the Association may access to the member the Association's attorneys' fees/costs pursuant to the governing documents and MCIOA.

9. Owners/occupants may not contact third parties associated with Directors, such as Directors' employers, agents, representatives, etc., such contact considered harassment.

10. Owners or occupants violating any Director's right to privacy by contacting the Director will NOT receive a warning, but instead the Association will communicate its intent to assess a fine for the violation (subject to the initial right to be heard) and ultimately, the Association may seek a Harassment Restraining Order against the Owner and/or the Owner's occupant, with the legal fees and costs incurred to enforce these Rules, assessed back to the individual Unit whose Owner and/or occupant is violating the same.